Tool 2 — Neurodata Transfer and Access Decision Tool (Neuro-TADT)

Supplementary Table 7

Assesses whether the safeguards associated with the tier assigned under Tool 1 can be maintained across a proposed sharing, repository, remote-access, cloud or cross-border pathway. Step 3 separates a controlled-access pathway (Steps 4A–12A) from a public-release pathway (Steps 4B–12B). Four outcomes: proceed subject to applicable approvals; proceed after supplementary safeguards; redesign the pathway; do not proceed and obtain specialist review.

Step	Question	Answer	Required action
General instructions before using this tool: Assess the proposed transfer or access arrangement using the tier and safeguards identified in Supplementary Table 6. Wherever this Tool says "record", enter the information against the relevant step in the transfer and access section of the Neurodata Governance Assessment Record. Where the MDTAA applies, incorporate or reference that assessment in Schedule C and link it to the classification recorded in Schedule B. Record supporting evidence, outstanding actions and responsible persons. Continuing through the assessment does not authorise transfer or access. A later answer does not remove an earlier restriction or unresolved requirement.			
1	What are you planning to do with the neurodata? Example: Using an EEG dataset to train a machine learning model for early detection of Alzheimer's disease.	Internal use only with no external or cross border sharing or access to data.	Record the internal use and why no listed external or cross-border pathway applies. Apply the safeguards identified in Supplementary Table 6 and assess applicable statutory access and authorisation requirements. Record "Neuro-TADT not required for this arrangement" and end this Tool. Other applicable governance assessments remain required.
1	What are you planning to do with the neurodata? Example: Using an EEG dataset to train a machine learning model for early detection of Alzheimer's disease.	Share with another institution; international transfer; repository deposit; cloud-hosted access; or AI platform or vendor access, public/open-access release	Record every selected pathway and proposed activity. Continue to Step 2.
1	What are you planning to do with the neurodata? Example: Using an EEG dataset to train a machine learning model for early detection of Alzheimer's disease.	Unsure	Obtain clarification of the proposed storage, sharing, access and processing arrangements. Pause the assessment and do not begin the proposed transfer or external access. Return to Step 1 when the pathway is established.
2	Has the neurodata already been assigned a risk tier using (Tool 1) Supplementary Table 6? Example: The neurodata has been classified as Tier 2 (Moderate Risk) using the criteria in Supplementary Table 6 before planning further processing or sharing.	Yes	Record the tier, whether it is provisional or confirmed, the applicable safeguards and the (Tool 1) Supplementary Table 6 assessment reference. Carry forward all unresolved conditions and restrictions. A provisional tier may support pathway assessment but does not remove required review. Continue to Step 3.
2	Has the neurodata already been assigned a risk tier using (Tool 1) Supplementary Table 6? Example: The neurodata has been classified as Tier 2 (Moderate Risk) using the criteria in Supplementary Table 6 before planning further processing or sharing.	No	Complete (Tool 1) Supplementary Table 6 to get a risk tier assigned to the particular data object and proposed activity. Return to Step 2 after a tier has been assigned. If (Tool 1) Supplementary Table 6 cannot establish a tier and requires specialist review, select Final Decision Outcome 4 below.
2	Has the neurodata already been assigned a risk tier using (Tool 1) Supplementary Table 6? Example: The neurodata has been classified as Tier 2 (Moderate Risk) using the criteria in Supplementary Table 6 before planning further processing or sharing.	Unsure	Locate the existing classification and check that it covers the object, version and proposed activity. Complete or update records according to Supplementary Table 6 if the classification is absent or no longer applicable. Return to Step 2 when the tier and safeguards are established.

Step	Question	Answer	Required action
3	Who will receive or access the neurodata, or is public/open-access release proposed? Example: An approved research collaborator, an international research consortium, or a trusted cloud service provider processing the neurodata under a data processing agreement.	Named or identifiable controlled-access recipient(s): collaborating institution; repository; cloud provider; commercial partner; AI developer	Record each recipient's name, role and proposed activity. Mark pathway Controlled access. Continue to Step 4A.
3	Who will receive or access the neurodata, or is public/open-access release proposed? Example: An approved research collaborator, an international research consortium, or a trusted cloud service provider processing the neurodata under a data processing agreement.	Intended controlled-access recipient(s) are not yet identified	Record which recipients are unidentified. Obtain recipient information. Do not begin transfer/access. Return to Step 3 when identified. If they cannot be identified → Final Decision Outcome 4.
3	Who will receive or access the neurodata, or is public/open-access release proposed? Example: An approved research collaborator, an international research consortium, or a trusted cloud service provider processing the neurodata under a data processing agreement.	Public/open-access release proposed	Record the object and version proposed for release. Record releasing organisation. Record repository/distribution channel. Record proposed licence/access conditions. Mark pathway Public release. Confirm Tool 1 / Supplementary Table 6 covers this object under proposed public-access conditions. Complete/update Tool 3 / Supplementary Table 8 where applicable. Continue to Step 4B.
4A	Can every recipient and subprocessor be identified? Example: All recipients are known by name, including collaborating institutions, cloud service providers, and any contracted subprocessors.	Yes	Record each recipient and subprocessor, its role and the information available about its access. Continue to Step 5.
4A	Can every recipient and subprocessor be identified? Example: All recipients are known by name, including collaborating institutions, cloud service providers, and any contracted subprocessors.	No or Unsure	Request complete recipient/subprocessor information. Do not begin access. Return to Step 4A when complete. If unresolved → Final Decision Outcome 4 below.
4B	Can the releasing organisation, repository/distribution platform, hosting provider and known sub-processors be identified?	Yes	Record each organisation/provider and role. Continue to Step 5.
4B	Can the releasing organisation, repository/distribution platform, hosting provider and known sub-processors be identified?	No / Unsure	Obtain the missing release/hosting information. Do not release. Return to Step 4B when established. If unresolved → Final Decision Outcome 4.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Downloadable copy	Record what may be downloaded, by whom and to which environment. Specify tier-appropriate controls for local storage, copying, access, onward sharing, retention and deletion. Continue to Step 6.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Remote or controlled access without downloading the underlying object	Record the access environment, authorised users and restrictions on downloading or exporting data and outputs. Specify access controls, logging and output review appropriate to the tier. Continue to Step 6.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Query-only or federated access	Record where processing occurs and what queries, outputs, gradients or other information may leave each environment. Specify controls on queries, outputs, access and logging appropriate to the tier. Continue to Step 6.

Step	Question	Answer	Required action
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Unsure	Obtain confirmation of the access modes and export capabilities from the recipient or infrastructure provider. Pause the assessment and do not begin access. Return to Step 5 when the access arrangements are established.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Public download/open-access repository/API release	Record the release mechanism. Record whether direct download, API access, bulk download or redistribution is enabled. Record registration/embargo/licence/access conditions, if any. Continue to Step 6.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	Yes	Record every relevant originating, receiving, hosting and remotely accessing jurisdiction, including relevant subprocessor locations. Continue to Step 7.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	No	Record the locations and the basis for concluding that no cross-jurisdictional transfer, storage or remote access is involved. Continue to Step 7.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	Unsure	Obtain location and remote-access information from the recipients and infrastructure providers. Do not begin transfer or access while relevant jurisdictions remain unresolved. Return to Step 6 when the locations are established. If they cannot be established, select Final Decision Outcome 4 below.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	Public-release pathway — future user locations unknown/unbounded	Record originating jurisdiction. Record releasing-organisation jurisdiction. Record repository/hosting jurisdiction(s). Record known infrastructure/subprocessor jurisdictions. Record future downloader jurisdictions as "Unknown/unbounded by design." Continue to Step 7.
7	Have the applicable lawful basis for processing, the required transfer or remote-access mechanism, any legally required data-protection, privacy-impact or risk assessment, and all necessary legal, ethics, institutional and repository approvals been identified and documented? Consider consent or another lawful basis, statutory transfer provisions, adequacy-type mechanisms, contractual safeguards, DPIAs, PIAs or other jurisdiction-specific data-protection or privacy-risk assessments, regulatory authorisation and institutional approval, as applicable.	Yes	Record the lawful basis, applicable transfer or access mechanism, required assessments and approvals, and their status and references. Record reasons where a mechanism or assessment is not required. Verify the Data Exporter's authority to make the present transfer or release, including applicable upstream conditions. Record any required upstream approval or the provision establishing that separate approval is unnecessary. Mark outstanding approvals as pending. Where the Public-release pathway applies, record the approval/authority for public release of this object and version, including repository/publication conditions and release status. Continue to Step 7A.

Step	Question	Answer	Required action
7	Have the applicable lawful basis for processing, the required transfer or remote-access mechanism, any legally required data-protection, privacy-impact or risk assessment, and all necessary legal, ethics, institutional and repository approvals been identified and documented? Consider consent or another lawful basis, statutory transfer provisions, adequacy-type mechanisms, contractual safeguards, DPIAs, PIAs or other jurisdiction-specific data-protection or privacy-risk assessments, regulatory authorisation and institutional approval, as applicable.	No or Unsure	Identify the missing basis, mechanism, assessment, approval or evidence of authority. Obtain the necessary legal, ethics, institutional or repository review. Do not begin transfer or access. Return to Step 7 when the requirements and their status are documented. If no applicable lawful pathway can be established, select Final Decision Outcome 4 below.
7A	Does the proposed activity require an EHDS permit or other statutory access authorisation?	Yes	Record the competent body, required authorisation, application or approval status, and reference. Record the authorised purpose, users, duration, processing location and release conditions once established. Mark an authorisation not yet obtained as pending; do not begin the activity requiring it. Continue to Step 8A for the controlled-access pathway or Step 8B for the public-release pathway, as applicable.
7A	Does the proposed activity require an EHDS permit or other statutory access authorisation?	No	Record the basis for concluding that no such authorisation is required for this activity. Continue to Step 8A for the controlled-access pathway or Step 8B for the public-release pathway, as applicable.
7A	Does the proposed activity require an EHDS permit or other statutory access authorisation?	Uncertain	Obtain review of the authorisation requirement. Do not begin the affected transfer or access. Return to Step 7A when the requirement is established. If it remains unresolved, select Final Decision Outcome 4 below.
8A	Can the receiving or accessing governance environment implement and maintain the safeguards required for the assigned tier? Consider institutional oversight, repository governance, technical controls, contractual compliance, auditability, enforcement and available remedies.	Yes	Record the evidence of capacity to maintain the required safeguards. Identify any safeguards that the environment can support but has not yet implemented, for verification at Step 13. Continue to Step 9A.
8A	Can the receiving or accessing governance environment implement and maintain the safeguards required for the assigned tier? Consider institutional oversight, repository governance, technical controls, contractual compliance, auditability, enforcement and available remedies.	No	Record which required safeguards cannot be maintained and why. If an alternative access model or governance arrangement could provide the required protection, select Final Decision Outcome 3 below. If no feasible alternative is identified, select Final Decision Outcome 4 below.
8A	Can the receiving or accessing governance environment implement and maintain the safeguards required for the assigned tier? Consider institutional oversight, repository governance, technical controls, contractual compliance, auditability, enforcement and available remedies.	Unsure	Obtain evidence from the receiving institution or infrastructure provider about whether the required safeguards can be maintained. Do not begin access while this remains unresolved. If the safeguards can be maintained, continue to Step 9A. If they cannot, select Final Decision Outcome 3 if a feasible alternative pathway may provide the required protection; otherwise select Outcome 4.

Step	Question	Answer	Required action
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	Yes	Record the safeguards that will apply before release and identify any controlled-access measure that cannot operate after public release. For each such measure, identify the release-specific safeguard that addresses the same risk and explain why it is adequate for the assessed object and release context. For Tier 2 participant-level data, document residual disclosure and linkage risk, including reasonably foreseeable downstream linkage; confirm release authority and applicable consent, ethics, institutional and upstream conditions; and assess the scope and enforceability of repository or licence terms. De-identification or a re-identification prohibition alone does not establish anonymity or satisfy this Step. Continue to Step 9B only if the assessment supports the proposed release. If required safeguards cannot be maintained, select Final Decisions Outcome 3 where a feasible redesign exists; otherwise select Outcome 4.
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	No, but controlled access or another release model could preserve them.	Record safeguards that cannot be maintained. Select Final Decision Outcome 3 — Redesign pathway.
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	No	Record why safeguards cannot be preserved. Select Final Decision Outcome 4.
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	Unsure	Obtain required review. Do not release. Return to Step 8B when resolved. If unresolved → Final Decision Outcome 4.
9A	Will the neurodata be linked with additional datasets after transfer or access? Examples include genomic, electronic health-record, wearable-device, consumer or public-register data.	Yes	Record the additional datasets, linkage purpose, responsible party and proposed resulting object. Apply Supplementary Table 6 to the proposed linked dataset or resulting object before linkage begins. Update the tier and safeguards recorded at Step 2 and review Steps 3–8 and 7A against that assessment, revising affected answers. Once the affected checks are complete and no blocking outcome applies, continue to Step 10A. Do not repeat the same linkage assessment unless relevant circumstances change.
9A	Will the neurodata be linked with additional datasets after transfer or access? Examples include genomic, electronic health-record, wearable-device, consumer or public-register data.	No	Record that linkage is outside the assessed arrangement and requires reassessment before introduction. Continue to Step 10A.
9A	Will the neurodata be linked with additional datasets after transfer or access? Examples include genomic, electronic health-record, wearable-device, consumer or public-register data.	Unsure	Clarify the proposed linkage, the datasets involved and the resulting object. Do not begin linkage while material uncertainty remains. Return to Step 9A when resolved. If it remains unresolved, select Final Decision Outcome 4.

Step	Question	Answer	Required action
9B	Could the publicly released object reasonably be linked with other available datasets in a way that changes its functional exposure?	Yes	Record foreseeable linkage sources/types. Reapply Tool 1 to the proposed public-release object. Update tier/safeguards where required. Reassess Step 8B using the updated tier and safeguards. If the Step 8B criterion is satisfied, continue directly to Step 10B. If the safeguards cannot be preserved or remain uncertain, follow the applicable Step 8B outcome. Do not repeat Step 9B unless the proposed linkage changes.
9B	Could the publicly released object reasonably be linked with other available datasets in a way that changes its functional exposure?	No	Record supporting assessment. Continue to Step 10B.
9B	Could the publicly released object reasonably be linked with other available datasets in a way that changes its functional exposure?	Unsure	Obtain disclosure/functional-exposure review. Withhold release. Return to Step 9B when resolved.
10A	Will the neurodata or a derivative artefact be used to train, fine-tune, validate, benchmark or deploy an AI or machine-learning system? Example: An external collaborator will use a transferred EEG dataset to fine-tune a model for detecting cognitive impairment, or use the dataset to validate the performance of an existing predictive model.	Yes	Record the proposed AI activities, system, responsible parties and intended outputs. Complete Tool 3 (Supplementary Table 8) for the proposed activity and follow its Final Decision instructions. If the tier or safeguards change, update Step 2 and repeat the affected pathway checks before continuing. If Tool 3 (Supplementary Table 8) requires unresolved specialist review or prohibits proceeding in the current form, select Final Decision Outcome 4 below. Otherwise, continue to Step 11A, carrying forward all outstanding safeguards and restrictions.
10A	Will the neurodata or a derivative artefact be used to train, fine-tune, validate, benchmark or deploy an AI or machine-learning system? Example: An external collaborator will use a transferred EEG dataset to fine-tune a model for detecting cognitive impairment, or use the dataset to validate the performance of an existing predictive model.	No	Record that these AI activities are outside the assessed arrangement and require assessment before introduction. Continue to Step 11A.
10A	Will the neurodata or a derivative artefact be used to train, fine-tune, validate, benchmark or deploy an AI or machine-learning system? Example: An external collaborator will use a transferred EEG dataset to fine-tune a model for detecting cognitive impairment, or use the dataset to validate the performance of an existing predictive model.	Unsure	Obtain confirmation of the intended AI activities from the recipient. Prohibit unassessed AI use pending clarification. Return to Step 10A when the answer is established. If the intended use cannot be established, select Final Decision Outcome 4 below.
10B	Under the proposed public-release conditions, is downstream AI/ML reuse permitted or reasonably available?	Yes	Record that AI/ML reuse is permitted/foreseeable. Check whether this conflicts with safeguards or upstream restrictions. If the released object is itself a derivative/model/embedding/etc., complete Tool 3 / Supplementary Table 8. Continue to Step 11B if there is no blocking issue.
10B	Under the proposed public-release conditions, is downstream AI/ML reuse permitted or reasonably available?	No — AI/ML reuse is restricted under release conditions	Record restriction and mechanism used. Continue to Step 11B.
10B	Under the proposed public-release conditions, is downstream AI/ML reuse permitted or reasonably available?	Unknown / cannot be controlled	Record inability to control downstream AI/ML use. Determine whether the inability to control downstream AI/ML reuse prevents a required safeguard from being maintained. If the pathway can be redesigned, narrowed or converted to controlled access, select Final Decision Outcome 3. If no acceptable pathway can preserve the required protection, select Final Decision Outcome 4. Otherwise continue to Step 11B.

Step	Question	Answer	Required action
11A	Will the neurodata be used for a purpose materially different from the approved research purpose? Examples may include commercial development, employment, insurance, clinical deployment or unrelated secondary research where these activities fall outside the already approved purpose, consent, ethics approval or other applicable authorisation. Interpretive note: Assess the proposed purpose against the authorisations and conditions applicable to this activity, including upstream restrictions and relevant consent, ethics and institutional requirements. A purpose different from the original study is not automatically prohibited, and public availability does not automatically authorise it. Record the basis for permitting the proposed use or the additional review or approval required.	Yes	Record the proposed purpose and the legal, consent, ethics, institutional, contractual and upstream conditions that apply. Obtain any required approval before the new use begins. If the use is authorised, record its scope and restrictions. Continue to Step 12A.
11A	Will the neurodata be used for a purpose materially different from the approved research purpose? Examples may include commercial development, employment, insurance, clinical deployment or unrelated secondary research where these activities fall outside the already approved purpose, consent, ethics approval or other applicable authorisation. Interpretive note: Assess the proposed purpose against the authorisations and conditions applicable to this activity, including upstream restrictions and relevant consent, ethics and institutional requirements. A purpose different from the original study is not automatically prohibited, and public availability does not automatically authorise it. Record the basis for permitting the proposed use or the additional review or approval required.	No	Record the approved purpose and the authorisation or conditions covering it. Continue to Step 12A.
11A	Will the neurodata be used for a purpose materially different from the approved research purpose? Examples may include commercial development, employment, insurance, clinical deployment or unrelated secondary research where these activities fall outside the already approved purpose, consent, ethics approval or other applicable authorisation. Interpretive note: Assess the proposed purpose against the authorisations and conditions applicable to this activity, including upstream restrictions and relevant consent, ethics and institutional requirements. A purpose different from the original study is not automatically prohibited, and public availability does not automatically authorise it. Record the basis for permitting the proposed use or the additional review or approval required.	Unsure	Clarify the proposed purpose with the recipient and compare it with applicable authorisations and restrictions. Do not begin the uncertain use. Return to Step 11A when the answer is established. If it remains unresolved, select Final Decision Outcome 4 below.
11B	Do the proposed public-use conditions allow reuse beyond the currently approved purpose?	Yes	Record scope of permitted downstream reuse. Confirm that the breadth of public reuse is covered by required approvals/permissions. If the authorised scope can be achieved by narrowing or redesigning the public-release conditions, select Final Decision Outcome 3. If the required authority or approval for the proposed scope cannot be established, select Final Decision Outcome 4. Otherwise continue to Step 12B.

Step	Question	Answer	Required action
11B	Do the proposed public-use conditions allow reuse beyond the currently approved purpose?	No	Record permitted purpose and restrictions. Continue to Step 12B.
11B	Do the proposed public-use conditions allow reuse beyond the currently approved purpose?	Unsure	Clarify licence/repository/approval conditions. Withhold release. Return to Step 11B.
12A	May the recipient disclose, transfer, or provide access to the neurodata or resulting artefacts to another party? This includes collaborators, repositories, vendors, cloud providers, subprocessors and downstream recipients.	Yes	Record permitted onward recipients or recipient categories, purposes and conditions. Check that onward permission is consistent with upstream conditions. Distinguish permission already granted from permission requiring separate approval. Require applicable safeguards to continue throughout the onward pathway and mark outstanding approvals as pending. If the proposed onward arrangement introduces recipients, locations or access modes not yet assessed, update Steps 3–8 and 7A before continuing. Continue to Step 13.
12A	May the recipient disclose, transfer, or provide access to the neurodata or resulting artefacts to another party? This includes collaborators, repositories, vendors, cloud providers, subprocessors and downstream recipients.	No	Record and contractually implement the prohibition on onward transfer or access. Continue to Step 13. This prohibition concerns the recipient's onward sharing; authority for the Data Exporter's present transfer remains subject to Step 7.
12A	May the recipient disclose, transfer, or provide access to the neurodata or resulting artefacts to another party? This includes collaborators, repositories, vendors, cloud providers, subprocessors and downstream recipients.	Unsure	Clarify the onward-sharing permissions and upstream restrictions. Do not permit onward sharing while permission remains unresolved. Return to Step 12A when the answer is established. If the arrangement cannot be assessed without resolving this issue, select Final Decision Outcome 4 below.
12B	Does the public-release mechanism permit copying, redistribution, mirroring or onward publication?	Yes	Record permitted forms of redistribution. Record applicable licence/conditions. Check whether continuing safeguards are compatible with redistribution. If incompatibility can be resolved by restricting redistribution or redesigning the release pathway, select Final Decision Outcome 3. If required safeguards cannot be preserved under any acceptable release arrangement, select Final Decision Outcome 4. Otherwise continue to Step 13.
12B	Does the public-release mechanism permit copying, redistribution, mirroring or onward publication?	No	Record restriction and mechanism implementing it. Continue to Step 13.
12B	Does the public-release mechanism permit copying, redistribution, mirroring or onward publication?	Unsure	Clarify repository/licence conditions. Withhold release. Return to Step 12B.
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	Yes	Record the implementation evidence and responsible verifier. Proceed to the Final Decision below and check the conditions for Outcome 1. Outstanding requirements identified earlier must still be satisfied.

Step	Question	Answer	Required action
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	No, but they can be implemented.	Record each outstanding safeguard, the responsible party and the evidence needed to verify implementation. Proceed to the Final Decision below and select Outcome 2 only if its conditions are met. Do not begin transfer, access, or release before implementation is verified.
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	No, and they cannot be implemented within the proposed pathway	Record the safeguards that cannot be implemented. Select Outcome 3 if a feasible alternative arrangement may provide the required protection. Otherwise, select Final Decision Outcome 4 below.
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	Unsure	Obtain verification from the responsible technical, legal or governance reviewer. Do not begin transfer, access, or release. Return to Step 13 when implementation can be established. If material uncertainty remains, select Final Decision Outcome 4 below.
Final Decision: Select and document one outcome Interpretive note: A Neuro-TADT outcome provides structured governance decision support. It does not independently authorise processing, establish formal legal adequacy or replace any required legal, ethics, institutional, repository or regulatory determination.			

Step	Question	Answer	Required action
Outcome 1	Proceed subject to applicable approvals	Select only where the applicable lawful basis, transfer, access or release mechanism, required approvals and authority for the proposed activity have been confirmed, and all required safeguards have been implemented and documented. For a controlled-access pathway, confirm that: all required recipients and subprocessors are identified; the applicable Risk Tier has been assigned; the purpose and access model are defined; the required safeguards can be maintained throughout the proposed pathway; any linkage, AI use, repurposing and onward sharing have been assessed; and all required legal, ethics, institutional, repository and other applicable approvals are in place. For a Public-release pathway, confirm that: the releasing organisation is identified; the repository, hosting platform or distribution channel and any required infrastructure providers are identified; the specific object and version approved for public release are identified; the applicable licence, terms of use or public-access conditions are recorded; the applicable Risk Tier has been assigned; the object has been assessed under the proposed public-	

Step	Question	Answer	Required action
		access conditions, including any required Tool 3 assessment; reasonably foreseeable linkage, AI reuse, redistribution and other downstream Functional Exposure have been assessed; all safeguards that must operate before or at the point of release have been implemented; and all required legal, ethics, institutional, repository and release approvals are in place. Required Action: Record the final approved pathway as Controlled access or Public release. For controlled access, record the approved recipients, purposes, access conditions and supporting approvals. For public release, record the releasing organisation, repository or distribution channel, object and version released, licence or access conditions, publication destination and supporting release approval. Proceed only within the confirmed approvals and conditions. Reassess before any Material Change to the object, purpose, recipient or release conditions, jurisdiction, access arrangement, repository, AI use, linkage or downstream distribution.	

Step	Question	Answer	Required action
Outcome 2	Proceed after supplementary safeguards are implemented	Select where the applicable legal and approval prerequisites are established, but specified safeguards remain to be implemented within the current pathway. Record each outstanding safeguard, responsible party and verification requirement. Withhold transfer, access, or release until implementation is verified. Return to Step 13 and, if all conditions are satisfied, record Outcome 1.	
Outcome 3	Redesign the transfer or access pathway	Select where required safeguards cannot be maintained under the current arrangement, including a proposed Public-release pathway, but a feasible alternative access or release arrangement may provide the required protection. Record why the current pathway is unsuitable and the proposed changes. Do not begin transfer, access, or release through the unsuitable pathway. Repeat this Tool for the redesigned arrangement, updating Tool 1 / Supplementary Table 6 if the changes could affect Functional Exposure or the required tier.	

Step	Question	Answer	Required action
Outcome 4	Do not proceed and obtain specialist review	Select where a required legal basis, mechanism, approval, required controlled-access recipient identity, releasing or hosting organisation, or other material governance issue remains unresolved, or the required protection cannot be maintained. Required Action: Record the reason, required review and responsible person or body. Do not begin the affected transfer, access, or release. Following review, return to the affected step and update all dependent answers. If no acceptable pathway is established, retain this outcome.	